

18CV05728 Mark Signa et al vs The Regents of the University of CA et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Mark Signa vs The Regents of the University of California et al

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Tentative Ruling: Mark Signa et al vs The Regents of the University of CA et al

Case Number

18CV05728

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/12/2026 - 10:00

Nature of Proceedings

Mark Signa vs The Regents of the University of California et al

Tentative Ruling

(1) For the reasons stated herein, the motion of defendant The Regents of the University of California for summary judgment, or in the alternative, summary adjudication against Matthew Stern's complaint is denied.

(2) For the reasons stated herein, the motion of defendant The Regents of the University of California for summary judgment, or in the alternative, summary adjudication against plaintiff Tiffany Little's complaint is denied.

(3) For the reasons stated herein, the motion of defendant The Regents of the University of California for summary judgment, or in the alternative, summary adjudication against plaintiff Michael Little's complaint is denied.

(4) For the reasons stated herein, the motion of defendants The Regents of the University of California and University of California, Santa Barbara Police Chief Dustin Olson, to dismiss plaintiff Mark Signa's action is denied.

(5) For the reasons stated herein, the motion of defendants The Regents of the University of California, Dustin Olson, Cathy Farley, David Millard, Robert Romero, Gregory Pierce, and Gregory Smorodinsky to dismiss plaintiffs Michael Little and Tiffany Little's action is denied.

(6) For the reasons stated herein, the motion of defendants The Regents of the University of California, David Millard and Gregory Smorodinsky to dismiss plaintiff Jonathan Lee Reyes' action is denied.

(7) For the reasons stated herein, the motion of defendants The Regents of the University of California and David Millard to dismiss plaintiff Matthew Stern's action is denied.

Background:

Pursuant to a minute order entered on May 29, 2016 (the May 29 Order), this case no. 18CV05728 (the Signa Action) is consolidated with Santa Barbara Superior Court case no. 19CV01431 entitled Michael Little, et al. v. The Regents of the University of California, et al. (the Little Action); Santa Barbara Superior Court case no. 19CV04418 entitled Matthew Stern v. The Regents of the University of California, et al. (the Stern Action); and Santa Barbara Superior Court case no. 19CV02586 entitled Jonathan Lee Reyes v. The Regents of the University of California, et al. (the Reyes Action) (collectively, the Actions).

For convenience of writing and to preserve judicial efficiency, the court addresses only those procedural matters that are relevant to the present proceeding.

On November 21, 2018, plaintiff Mark Signa (Signa) filed in the Signa Action, a complaint (the Signa Complaint) against defendants The Regents of the University of California (the Regents) and University of California Santa Barbara Police Chief Dustin Olson (Olson).

On February 4, 2019, Signa filed a first amended complaint against the Regents and Olson.

On March 19, 2019, plaintiffs Michael Little (M Little) and Tiffany Little (T Little) (collectively, the Little Plaintiffs) filed a complaint in the Little Action (the Little Complaint) against the Regents, Olson, Cathy Farley (Farley), David Millard (Millard), Robert Romero (Romero), Gregory Pierce (Pierce), and Gregory Smorodinsky (Smorodinsky).

On May 17, 2019, plaintiff Jonathan Lee Reyes (Reyes) filed a complaint in the Reyes Action against the Regents, Millard, and Smorodinsky.

On May 22, 2019, the court signed and filed an order, upon a joint motion or stipulation, staying the proceedings in the Signa Action; and separately signed and filed an order, also upon a joint motion or stipulation, staying the proceedings in the Little Action.

On July 23, 2019, the court signed and filed an order upon a joint motion or stipulation, staying the proceedings in the Reyes Action.

On August 20, 2019, plaintiff Matthew Stern (Stern) filed a complaint in the Stern Action (the Stern Complaint) against the Regents and Millard.

On October 3, 2019, the court signed and filed an order, upon a stipulation by the parties, staying the proceedings in the Stern Action.

On January 15, 2021, the court entered a minute order granting the motion of Signa for an order lifting the stay of the Signa Action; and entered a separate minute order granting the motion of the Little Plaintiffs for an order lifting the stay of the Little Action.

On January 19, 2021, the court entered a minute order granting the motion of Stern for an order lifting the stay of the Stern Action.

On January 25, 2021, the court entered a minute order granting the motion of Reyes for an order lifting the stay of the Reyes Action.

On February 16, 2021, the Regents filed an answer to the Little Complaint, generally denying its allegations and asserting twenty-seven affirmative defenses, and separately filed an answer to the Stern Complaint, generally denying its allegations and asserting twenty-seven affirmative defenses. On that same date, Olson, Farley, Romero, Pierce, and Smorodinsky separately filed their answer to the Little Complaint, generally denying its allegations and asserting twenty-seven affirmative defenses.

On July 8, 2021, the Regents filed in the Signa Action, an unopposed motion (the Regents Consolidation Motion) to transfer and consolidate with that action, the Little Action, the Reyes Action, the Stern Action, and Santa Barbara Superior Court case no. 19CV01625 entitled John Doe v. The Regents of the University of California Santa Barbara, et al. (the Smith Action), for pretrial purposes.

On September 17, 2021, the court entered a minute order granting the Regents Consolidation Motion.

On March 29, 2023, Millard filed an answer to the Little Complaint, and separately filed an answer to the Stern Complaint.

On August 8, 2025, after a trial confirmation conference (TCC), the court entered a minute order (the TCC Order) setting the Smith Action for a seven day jury trial to commence on June 8, 2026; and setting the Signa Action "and those considered in consolidation" for a fifteen day jury trial to commence on June 18, 2026.

On October 2, 2025, a trial call order was entered in the Signa Action, ordering that case to start trial on the date certain of June 18, 2026.

On January 22, 2026, the Regents filed a motion for summary judgment, or in the alternative, motion for summary adjudication against the Stern Complaint (the Regents Stern Motion). The Regents Stern Motion was calendared for hearing on April 24, 2026.

On January 26, 2026, the Regents filed a motion for summary judgment, or in the alternative summary adjudication, against the complaint of T Little in the Little Action (the Regents T Little Motion), and separately filed a motion for summary judgment, or in the alternative, summary adjudication, against the complaint of M Little in the Little Action (the Regents M Little Motion). The Regents T Little Motion and M Little Motion (collectively, the Regents Little Motions) were calendared for hearing on May 1, 2026.

On April 3, Stern filed an opposition to the Regents Stern Motion.

On April 10, T Little and M Little separately filed their respective oppositions to the Regents Little Motions.

On April 11, the court signed, and on April 13 filed, an order approving a stipulation by the parties to continue the hearing on the Regents Stern Motion to May 8, 2026.

On May 1, the court entered a minute order continuing the Regents Little Motions to June 12, 2026, due to the lodging by the Regents of materials conditionally under seal in support of those motions without the filing of an appropriate motion for the entry of an order to place those materials under seal.

On May 8, the court entered a minute order continuing the Regents Stern Motion to June 12, 2026, also due to the lodging by the Regents of materials conditionally under seal in support of that motion without the filing of an appropriate motion for the entry of an order to place those materials under seal.

On May 11, the Regents filed a motion for an order to file under seal the materials lodged conditionally under seal in support of the Regents Little Motions (the Little Motion to Seal), and a motion for an order to file under seal the materials lodged conditionally under seal in support of the Regents Stern Motion (the Stern Motion to Seal).

On May 18, the Little Plaintiffs filed an opposition to the Little Motion to Seal, and Stern filed an opposition to the Stern Motion to Seal.

On May 29, the court entered the May 29 Order described above, pursuant to which the court also granted, in part, the Little Motion to Seal as to exhibits 4, 6 through 13, 16 through 25, and 30 through 37 to the amended appendix of evidence filed by the Regents on February 4, 2026, in support of the Regents T Little Motion (the T Little Amended Appendix), only; and as to exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29 to the amended appendix of evidence also filed on February 4, 2026, in support of the Regents M Little Motion (the M Little Amended Appendix).

Further, the court granted the Stern Motion to Seal as to exhibits 3, 4, 7 through 9, and 16, only, to the amended appendix of evidence filed by the Regents on February 4, 2026, in support of the Regents Stern Motion (the Stern Amended Appendix).

The May 29 Order otherwise denied the Little Motion to Seal and the Stern Motion to Seal, and ordered the Regents to, no later than 5 p.m. on June 3, 2026, file public versions of the T Little Amended Appendix, the M Little Amended Appendix, and the Stern Amended Appendix, with redactions to only those exhibits described above for which the court granted the Little Motion to Seal and Stern Motion to Seal.

On June 1, the Regents filed an ex parte application (the application) for an order shortening time to hear forthcoming motions to dismiss the Smith Action, the Little Action, the Signa Action, the Stern Action, and the Reyes Action. On that same date, Olson, Farley, Millard, Romero, Pierce, and Smorodinsky (collectively, the Individual Defendants) filed a joinder to that application; and plaintiff Ryan Smith (Smith) filed an opposition to the application.

On June 2, after a hearing, the court issued a minute order (the Ex Parte Order) granting the application; specially setting a hearing on the forthcoming motion to dismiss the Smith Action for June 8, 2026; and ordering that any opposition to that motion be filed and served by 12 p.m. on June 4, with any reply to be filed and served by 10 a.m. on June 5.

The Ex Parte Order also set a hearing on the forthcoming motions to dismiss the Little Action, the Signa Action, the Stern Action, and the Reyes Action, for June 12, 2026, to be heard at the same time as the pending Regents Stern Motion and Regents Little Motions, and ordered that any opposition to those motions to dismiss be filed and served no later than 3 p.m. on June 4, with any replies to be filed and served no later than 3 p.m. on June 5.

On June 1, the Regents and the University of California Santa Barbara Police Department (UCSB-PD) filed a motion for an order dismissing the Smith Action (the Motion to Dismiss Smith Action). On that same date, the Regents and Olson filed a motion for an order dismissing the Signa Action (the Motion to Dismiss Signa Action); the Regents and the Individual Defendants filed a motion for an order dismissing the Little Action (the Motion to Dismiss Little Action); the Regents and Millard filed a motion for an order dismissing the Stern Action (the Motion to Dismiss Stern Action); and the Regents, Millard, and Smorodinsky filed a motion for an order dismissing the Reyes Action (the Motion to Dismiss Reyes Action).

Also on June 1, Olson filed a notice of joinder and joinder to the Motion to Dismiss Signa Action; the Individual Defendants filed a notice of joinder and joinder to the Motion to Dismiss Little Action; Millard filed a notice of joinder and joinder to the Motion to Dismiss Stern Action; and Millard and Smorodinsky filed a notice of joinder and joinder to the Motion to Dismiss Reyes Action.

Each of the motions to dismiss described above is made on the ground that, pursuant to Code of Civil Procedure section 583.310, and emergency rule 10(a), the Actions are subject to mandatory dismissal pursuant to Code of Civil Procedure section 583.360.

On June 3, the Regents filed a public redacted version of the Stern Amended Appendix, which consists of six volumes of exhibits; and separate filed public redacted versions of the T Little Amended Appendix, which consists of three volumes of exhibits, and the M Little Amended Appendix, which consists of five volumes of exhibits.

On June 4, Smith, the Little Plaintiffs, Stern, Reyes, and Signa separately filed and served their respective oppositions to the motions to dismiss described above. Replies to those oppositions, joinders to those replies, and supplemental replies were filed with the court on June 5 as further discussed herein.

On June 8, the court entered a minute order adopting its tentative ruling denying the Motion to Dismiss Smith Action.

Analysis:

(1) The Regents Stern Motion

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. [¶] A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. " (Code Civ. Proc., § 437c, subd. (f)(1)-(2).)

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).) The party moving for summary judgment "bears the burden of persuasion that there is no genuine issue of material fact and that he is entitled to judgment as a matter of law." (Id. at p. 845.) Relevant here, a defendant meets that burden by showing "that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

"In reviewing a defense summary judgment, we apply the traditional three-step analysis ..., that is, we (1) identify the pleaded issues, (2) determine if the defense has negated an element of the plaintiff's case or established a complete defense, and if and only if so, (3) determine if the plaintiff has raised a triable issue of fact." (Meddock v. County of Yolo (2013) 220 Cal.App.4th 170, 175, fn. omitted.)

"The pleadings delimit the issues to be considered on a motion for summary judgment. [Citation.] The defendant must present facts to negate each claim as framed by the complaint or establish a defense." (Turner v. State of California (1991) 232 Cal.App.3d 883, 891.) Further, "[a] defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers." (Government Employees Ins. Co. v. Superior Court (2000) 79 Cal.App.4th 95, 98.)

The Stern Complaint alleges that Stern has been employed by the Regents from May 2005 through the present. (Stern Complaint, ¶ 9.) Stern's job title is "Police Officer". (Ibid.) Stern worked under Police Chief Olson, Assistant Chief Farley, Lieutenant Millard, Sergeant Romero, Sergeant Smorodinsky, Sergeant Rory Sheehey (Sheehey), Sergeant Pierce, and Sergeant Smith. (Ibid.)

The Stern Complaint further alleges that, after Stern raised concerns to Millard, who is Stern's direct supervisor, regarding safety risks posed by a new employee who was failing to do their job properly, Smith's threats to Stern, other officer's fears of Smith, and retaliation, and after Stern supervised a union meeting regarding concerns about Millard, Stern was investigated, threatened with discipline, lost his position as a corporal, denied a Taser Instructor position, removed from a Field Training Officer position, refused awards for Stern's efforts during riots at UC Berkeley, and berated and threatened by Millard. (Stern Compl., ¶¶ 10-26.)

The Stern Complaint asserts two causes of action against the Regents and Millard: (1) violation of the California Whistleblower Protection Act; and (2) violation of California Labor Code section 1102.5.

The Regents Stern Motion seeks an order granting summary judgment in favor of the Regents and against Stern or, alternatively, summary adjudication of 12 issues which are set forth in the notice of that motion. (Notice at pp. 4-6.) The separate statement filed by the Regents in support of the Regents Stern Motion sets forth 104 facts that the Regents concedes relate to "all causes of action" asserted in the Stern Complaint, to each issue that is the subject of the Regents Stern Motion, and "that could make a difference in the disposition of the motion." (Sep. Stmt. at pp. 4-23 [setting forth material fact nos. 1 through 104 as to "all causes of action"] & pp. pp. 23-29 [incorporating material fact nos. 1 through 114 as to each issue]; see also Cal. Rules of Court, rule 3.1350(a)(2).)

As a threshold matter, and for reasons further discussed in the May 29 Order, the court considers only the Stern Amended Appendix. The May 29 Order authorizes the filing of a public redacted version of the Stern Amended Appendix that redacts exhibits 3, 4, 7 through 9, and 16, only. Pursuant to that order, no other exhibit or material contained in any other exhibit may be redacted from the public redacted version of the Stern Amended Appendix.

The Stern Amended Appendix filed unsealed by the Regents on June 3 includes six volumes of exhibits, and contains redactions to material appearing in exhibits other than exhibits 3, 4, 7 through 9, and 16. (See, e.g., Stern Amended Appendix Vol. 1 at pdf p. 388; Vol. 2 at pdf pp. 11-55 & 58-85; Vol. 3 at pdf pp. 8-13, 18-35, 38-39, & 45-47; Vol. 4 at pdf pp. 9, 12-16, 19-22, 28, 29, & 32-47; Vol. 5 at pdf pp. 8-23 & 25-45; Vol. 6 at pdf pp. 8-25, 32-35, 37-57, 62, 64, 68, 70, 72, 76, 78, 85, 86, 95-100, 103, 106, 110, & 112-118.) For these reasons, the Regents has failed to comply with the May 29 Order. Furthermore, apart from exhibits 3, 4, 7 through 9, and 16, the court does not consider any material that is redacted from the public version of the Stern Amended Appendix.

The issues that are the subject of the Regents Stern Motion include that the reports of Stern at issue in these proceedings "did not disclose "improper government activity" because those reports failed to identify or establish "that any state or federal laws or regulations were violated..."; because Stern has not shown "any conduct that violated any Executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual" or conduct that "was economically wasteful, involves gross misconduct, incompetency, or inefficiency";

and because those reports “merely disclosed possible violations of internal policies, which in one instance did not exist, and which are not protected even if the policies are of a government entity.” (Notice at p. 4, ¶¶ 1, 2.)

The issues also include that Stern’s reports to the Regents did not involve a “protected disclosure” or “good faith communication” because those reports “did not involve disclosures of an ‘improper governmental activity’ and the disclosures were not intended for the purposes of remedying any condition that threatened the health or safety of employees or the public as the activities [Stern] reported did not threaten such things”; that Stern “objectively could not have a reasonable belief that illegal conduct was occurring, as [Stern] did not witness most of the alleged conduct reported and could not reasonably believe those facts constituted illegal conduct”; that Stern “did not have reasonable cause to believe the reported activities disclosed ‘improper government activity’ or violated any law”; and that Stern “reported publicly known or already known information which does not constitute a protected disclosure” (Notice at pp. 4-5, ¶¶ 3, 4 & 9; p. 6, ¶ 12.)

Based on the issues described above, the Regents Stern Motion argues, the first cause of action for violation of Government Code section 8547 et seq. (the California Whistleblower Protection Act or Act) and the second cause of action for violation of Labor Code section 1102.5 asserted in the Stern Complaint, lack merit. (See also Notice at p. 5, ¶ 8.)

For the reasons further discussed above, the Regents Stern Motion concedes that each of the 104 material facts set forth in the supporting separate statement relate and are material to the issues described above. (Sep. Stmt. at p. 23 [incorporating “undisputed material facts numbered one ... through 104” as to issue “B”], p. 24 [same as to issues “C” & “D”], p. 25 [same as to issue “F”], p. 27 [same as to issues “J” and “K”], & p. 28 [same as to issue “O”].) “ [T]he separate statement effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the Regents’] separate statement, the motion must be denied!” [Citation.]” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252 (Nazir), original italics.)

Pursuant to Government Code section 8547.2, a “protected disclosure” is “a good faith communication, including a communication based on, or when carrying out, job duties, that discloses or demonstrates an intention to disclose information that may evidence either of the following circumstances:

“(A) An improper governmental activity.

“(B) A condition that may significantly threaten the health or safety of employees or the public if the disclosure or intention to disclose was made for the purpose of remedying that condition.” (Gov. Code, § 8547.2, subd. (e)(1)(A), (B).)

Under Government Code section 8547.2, “[i]mproper governmental activity’ means an activity by a state agency or by an employee that is undertaken in the performance of the employee’s duties, undertaken inside a state office, or, if undertaken outside a state office by the employee, directly relates to state government, whether or not that activity is within the scope of their employment, and that meets any of the following criteria:

“(A) The activity is in violation of any state or federal law or regulation, including, but not limited to, corruption, malfeasance, bribery, theft of government property, fraudulent claims, fraud, coercion, conversion, malicious prosecution, misuse of government property, misuse of state expenditures, including allocations, loans, or grants, or willful omission to perform duty.

“(B) The activity is in violation of an executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual.

“(C) The activity is economically wasteful, involves gross misconduct, incompetency, or inefficiency.” (Gov. Code, § 8547.2, subd. (c)(1)(A)-(C).)

“Complaints made ‘in the context of internal administrative or personnel actions, rather than in the context of legal violations’ do not constitute protected whistleblowing. [Citations.] ‘To exalt these exclusively internal personnel disclosures with whistleblower status would create all sorts of mischief. Most damagingly, it would thrust the judiciary into micromanaging employment practices and create a legion of undeserving protected “whistleblowers” arising from the routine workings and communications of the job site.’ [Citation.]” (Levi v. Regents of University of California (2017) 15 Cal.App.5th 892, 904.)

The Regents Stern Motion asserts that Stern “appears to allege four instances where he claims he made a protected disclosure. Two reports appear to involve concerns about the performance and behavior of three officers. One report involved [Stern’s] claim that officers in the department were ‘legitimately in fear’ of a Sergeant who had left [the Regents’] employment nine months before the report was made. The final report consists of comments made by other officers at a union meeting [Stern] led that disclosed in front of others and supervisors (the only ‘supervisor’ identified was Corporal Brad Prows) that Lieutenant [Millard] made unethical decisions and was aware of a culture of retaliation in the department but refused to take any action.” (Memorandum at p. 10, ll. 11-18.)

The opposition of Stern asserts that the protected disclosures at issue include: in late 2015, Stern verbally reported to Smith, who was Stern’s direct supervisor, that Officers Rothermel and Savaglio were refusing to respond to backup calls, turning off their radios, and failing to answer phone calls during shifts, which Stern believed to be a violation of Penal Code section 832; in June 2016, in his capacity as corporal and “FTO” (which the court understands to mean Field Training Officer), Stern reported to Smith that officer Siegel had been released from the FTO program prematurely and lacked the competency to exercise full arrest authority, which Stern also believed to be a violation of Penal Code section 832; on August 15, 2018, Stern led a union meeting in his capacity as “FUPOA” local leader during which officers disclosed to the assembly, a purported pattern of retaliation at the UCSB-PD, specific adverse actions they attributed to protected conduct, and their fear of continuing to work in an environment where disclosures led to discipline; and on August 19, 2018, Millard called a three-hour squad meeting where Stern disclosed to Millard, retaliation within the department, officers’ ongoing fear of former Sergeant Smith; and concerns about Millard’s leadership. (Opp. at pp. 2-3.)

The separate statement submitted by the Regents sets forth the following material facts: in late 2015, Stern informed Smith, Stern’s direct supervisor, of unsafe and inappropriate conduct related to Officers Joash Rothermel and Jeff Savaglio, including that those officers had not responded to requests for backup, had turned off their radios, and did not answer phone calls after the officers had not responded on the radio; on or around June 8, 2016, Stern shared with Smith his concerns about Officer Amanda Siegel’s performance and conduct as being unsafe, including that Siegel needed additional supervision, that Stern oftentimes saw her having difficulty responding to routine calls based upon the fact that she did not appear to ask for help and would freeze, and that Stern heard through others that they were concerned about responding to calls due to safety issues with respect to Siegel; on August 15, 2018, Stern led a union meeting during which unidentified officers disclosed in front of unspecified department supervisors who included Corporal Brad Prows, that Millard had made unethical decisions and was aware of a culture of retaliation in the department but refused to take any action; on August 19, 2018, Stern told Millard about retaliation, safety, fear of Smith in the workplace, and people being picked for promotion opportunities when they were not qualified or there were persons more qualified; that during a shift meeting, Stern informed Millard that Stern was retaliated against by Smith for raising safety issues; and that on September 5, 2018, and January 3 and February 26, 2019, respectively, Stern made a report to the Whistleblower Hotline, submitted a Whistleblower Retaliation Complaint, and supplemented that complaint. (Sep. Stmt., Undisputed Material Fact [UMF] nos. 9, 10, 13-15, 19, 61, 62, 65, 66, 81 & 89-91; see also Memorandum at p. 19 [referring to those UMF].)

Considering the nature and content of the disclosures ostensibly at issue as further described above, which on their face implicate or concern safety issues and purported retaliation for raising those concerns, a reasonable trier of fact could conclude that the disclosures of Stern at issue relate to or implicate activity in violation of law, or incompetency. The Regents Stern Motion also fails to explain why a reasonable trier of fact could not conclude from the material facts set forth in the supporting separate statement, that any of the disclosures at issue were made by Stern for the purpose of remedying the purported conditions described Stern’s reports. Instead, based on the material facts presented in this proceeding, a reasonable trier of fact could find that the disclosures of Stern at issue implicate or concern improper governmental activity under the Act, that Stern reasonably believed the conduct at issue constitutes or may constitute improper government activity notwithstanding any lack of personal knowledge of certain activities, and that the reports were made by Stern in good faith.

The issues that are the subject of the Regents Stern Motion also include that Stern’s claims of retaliation did not involve, and that Stern cannot establish, any adverse employment action; that any purported adverse employment action was minor or trivial; that Stern cannot establish a causal link between the alleged protected activities of Stern and any adverse

employment action; and that the alleged adverse employment action would have occurred for legitimate, independent reasons. (Notice at pp. 5-6, ¶¶ 5-7 & 10-11.) As to those issues, the Regents Stern Motion argues that the first cause of action for violation of Government Code section 8547 et seq., and second cause of action for violation of Labor Code section 1102.5, asserted in the Stern Complaint lack merit.

Government Code section 8547 et seq. (the California Whistleblower Protection Act or Act) “prohibits retaliation against state employees who ‘report waste, fraud, abuse of authority, violation of law, or threat to public health’ [Citation.] The Act authorizes ‘an action for damages’ to redress acts of retaliation. [Citation.]” (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 882.) The Act provides that “any person who intentionally engages in acts of reprisal, retaliation, threats, coercion, or similar acts against a university employee, including an officer or faculty member, or applicant for employment for having made a protected disclosure shall be liable in an action for damages brought against him or her by the injured party.” (Gov. Code, § 8547.10, subd. (c).)

“Government Code section 8547.10, subdivision (e), rather than [McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792], provides the relevant framework for analyzing claims under Government Code section 8547.10.” (Scheer v. Regents of the University of California (2022) 76 Cal.App.5th 904, 916 (Scheer).) “In any civil action ... once it has been demonstrated by a preponderance of the evidence that an activity protected by [the Act] was a contributing factor in the alleged retaliation against a former, current, or prospective employee, the burden of proof shall be on the supervisor, manager, or appointing power to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in protected disclosures or refused an illegal order.” (Gov. Code, § 8547.10, subd. (e).)

“Both direct and circumstantial evidence can be used to show an employer’s intent to retaliate. ‘Direct evidence of retaliation may consist of remarks made by decisionmakers displaying a retaliatory motive. [Citation.]’ [Citation.] Circumstantial evidence typically relates to such factors as the plaintiff’s job performance, the timing of events, and how the plaintiff was treated in comparison to other workers.” (Colarossi v. Coty US Inc. (2002) 97 Cal.App.4th 1142, 1153.)

The separate statement shows that Stern began their employment with the UCSB-PD on March 2, 2005. (Sep. Stmt., UMF no. 1.) On January 27, 2017, Stern was notified of an internal investigation against him for engaging in inappropriate or unethical behavior including by using a personal communication device while on duty, and by failing to report inappropriate behavior by other officers. (Sep. Stmt., UMF no. 26.) As a result of that investigation, Stern was notified on April 12, 2017, that he was suspended from the UCSB-PD effective May 10 and 11, 2017. (Sep. Stmt., UMF no. 27.)

On February 9, 2017, UCSB-PD issued Administrative Order (AO) 2/9/17-01, pursuant to which Stern applied for the taser instructor position. (Sep. Stmt., UMF nos. 30 & 34.) On March 1, 2017, UCSB-PD issued notices announcing the selection of the taser positions, among others. (Sep. Stmt., UMF no. 36.) Stern was not selected for a taser position. (Sep. Stmt., UMF nos. 29 & 37.)

Stern remained a corporal until April 22, 2017. (Sep. Stmt., UMF no. 38.) On July 20, 2017, UCSB-PD issued AO 7/20/17/01 which requested that all officers interested in a corporal specialty assignment, or in continuing their current assignment, submit a letter of interest and resume by a specified date. (Sep. Stmt., UMF nos. 39-41.) The applications for the corporal specialty assignments were reviewed by a committee of six active sergeants who evaluated and scored the applicants. (Sep. Stmt., UMF no. 42.) Millard compiled the scores of applicants for the corporal specialty assignments on August 15, 2017, but “stayed out” of the process of reviewing applications and the selection of candidates “to avoid the appearance of interference or influence....” (Sep. Stmt., UMF no. 43.) Stern alleges that Millard later admitted he influenced the selection of officers in those positions. (Sep. Stmt., UMF no. 67.)

Stern’s application scored thirteenth out of thirteen for the corporal specialty assignment, and Stern was not among the applicants selected for that assignment. (Sep. Stmt., UMF nos. 44 & 46.)

On August 21, 2018, UCSB-PD announced the selection by Olson of officers for a corporal specialty assignment that was initiated on July 28, 2018, for which Stern had applied but was not selected. (Sep. Stmt., UMF nos. 50-60.)

When evaluating the evidence presented by the parties on summary judgment, the court "must 'view the evidence in the light most favorable to plaintiff[] ...' and 'liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.' " (Nazir, supra, 178 Cal.App.4th at p. 254.) The court may not weigh the evidence to determine whose version is more likely true. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.)

Viewing the available evidence and information described above in the light most favorable to Stern, and considering the timing of those events in relation to, among other things, the concerns raised by Stern, the present record is sufficient to support competing or conflicting inferences as to whether there existed a retaliatory motive including in regard to the internal investigation of and denial of assignments to Stern, notwithstanding whether the Regents can show the existence of a legitimate reason for its actions. (See Scheer, supra, 76 Cal.App.5th at pp. 917–918.)

As the present record is sufficient to show, for all further reasons discussed above, the existence of triable issues of fact, including in regard to competing inferences which are reasonably deducible from the evidence presented by the parties, the court will deny the Regents Stern Motion. (Code Civ. Proc., § 437c, subds. (c), (f)(1); Aguilar, supra, 25 Cal.4th at p. 845; Gov. Code, § 8547.10, subd. (e).)

The Regents' request for judicial notice:

The court will grant the request of the Regents for judicial notice of the Stern Complaint. (Regents RJN at p. 4, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

Evidentiary objections:

The Regents has submitted written objections to material contained in the declaration of Stern submitted in support of Stern's opposition to the Regents Stern Motion. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c, subd. (q).)

As the Regents Stern Motion fails, for all reasons discussed above, to shift the burden to Stern to raise a triable issue of fact, the court need not rule on the objections raised by the Regents. Even if that motion was sufficient to shift the burden to Stern, the court does not deem the evidence to which the Regents has raised objections to be material to its disposition of the Regents Stern Motion.

In addition, the written objections of the Regents fail to comply with court rules, which require that "[e]ach written objection must be numbered consecutively and must:

"(1) Identify the name of the document in which the specific material objected to is located;

"(2) State the exhibit, title, page, and line number of the material objected to;

"(3) Quote or set forth the objectionable statement or material; and

"(4) State the grounds for each objection to that statement or material." (Cal. Rules of Court, rule 3.1354(b)(1)-(4).)

“Written objections to evidence must follow one of the ... two formats” set forth in California Rules of Court, rule 3.1354. (Cal. Rules of Court, rule 3.1354(b).)

Though the written objections of the Regents identify the document where the material objected to is located and quote the objectionable material, those objections fail to follow the format set forth in California Rules of Court, rule 3.1354. For example, the Regents raise the same multiple objections to multiple statements contained in each cited paragraph of the Stern declaration. The manner in which those written objections are formatted effectively forces the court to guess whether the Regents contends that all or only some statements within each cited paragraph are objectionable, and why. For these reasons, the court may disregard those objections. (*Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 (*Hodjat*) [a trial court may decline to rule on improperly formatted objections].)

(2) The Regents Little Motions

The Little Complaint alleges that the Little Plaintiffs are employed by the Regents. (Little Complaint, ¶ 15.) M Little has been employed from approximately March 2014 through the present, and T Little has been employed from approximately November 2014 through the present. (*Ibid.*) The job titles of the Little Plaintiffs were “Police Officers”, and the Little Plaintiffs worked under Olson, Farley, Millard, Romero, Smorodinsky, Pierce, and Smith. (Little Complaint, ¶ 17.)

The Little Complaint alleges that M Little and T Little each raised or reported concerns regarding a subordinate officer spending an inexplicable amount of time in the freshman residence halls while on duty; suspicious behavior by that officer including that officer turning off his radio and refusing to respond to calls for service; the involvement of Smith in an intimate relationship with a subordinate officer; Smith’s unauthorized use of emergency lights to evade traffic when traveling to a breakfast event; Smith’s use of the employer’s gas card and rental vehicle for non-job related purposes; Smith driving recklessly and hitting a parked car; the possible misappropriation of department funds by Smith; and concerns about potential retaliation by Smith. (Little Complaint, ¶¶ 18-29.)

The Little Complaint further alleges that, after reporting the concerns described above, the Little Plaintiffs were subjected to retaliatory conduct including: M Little was not included as an instructor at an upcoming training event; Millard told T Little that she talked too much; Romero expressed discontent over the reporting of Smith’s conduct and selected an applicant for a detective position who was less qualified than T Little; Smorodinsky told T Little that she should not have reported Smith’s conduct, intentionally excluded T Little from assisting in an overtime assignment, and chose less senior and experienced officers to assist with a search warrant; T Little’s complaint regarding Smith was never investigated; M Little was not assigned to active shooter training days despite previous past practices; T Little was not invited to participate in or coordinate new hire training; the Little Plaintiffs were demoted from corporal and Field Training Officer positions while other other less experienced officers were promoted to those positions; M Little was denied a computer forensic analyst position even though M Little had previously been selected to fill that role; M Little’s concerns regarding limited choices for shift and vacation selections were dismissed; incidents against the Little Plaintiffs were fabricated; and T Little was removed from working a previously approved overtime shift. (Little Complaint, ¶¶ 30-56.)

The Little Complaint asserts two causes of action against the Regents, Olson, Farley, Millard, Romero, Pierce, and Smorodinsky: (1) violation of the California Whistleblower Protection Act; and (2) violation of Labor Code section 1102.5.

(a) The Regents T Little Motion

The Regents T Little Motion seeks an order granting summary judgment against T Little or, alternatively, summary adjudication of 14 issues which are set forth in the notice of that motion. (Notice at pp. 4-6.) For the same reasons discussed above, the separate statement filed by the Regents in support of that motion sets forth 114 facts that the Regents concedes are material and relate to each cause of action asserted by T Little in the Little Complaint, each issue that is the subject of the Regents T Little Motion. (Sep. Stmt. at pp. 4-24 [material fact nos. 1 through 114 as to “all causes of action”] & pp. pp. 24-30 [incorporating material fact nos. 1 through 114 as to each issue]; Cal. Rules of Court, rule 3.1350(a)(2).)

As a threshold matter, and for the reasons discussed in the May 29 Order, the court considers only the T Little Amended Appendix. Though the May 29 Order provides that only exhibits 4, 6 through 13, 16 through 25, and 30 through 37 to the T Little Amended Appendix may be redacted, the public redacted version of that appendix that was filed by the Regents on June 3, contains redactions to material appearing in exhibits other than exhibits 4, 6 through 13, 16 through 25, and 30 through 37. (See, e.g., T Little Amended Appendix Vol. 1 at pdf pp. 123, 157, & 404-420; Vol. 2 at pdf pp. 21-67, & 72-97; Vol. 3 at pdf pp. 9-32, 38-62, 69-71, 75-89, 92-96, 107, 110-119, & 124.) For these and all further reasons discussed above, the Regents has failed to comply with the May 29 Order. In addition, and for those same reasons, the court does not consider any redacted material apart from exhibits 4, 6 through 13, 16 through 25, and 30 through 37.

The issues that are the subject of the Regents T Little Motion are similar to those further discussed above, and include that T Little's reports to the Regents did not disclose improper government activity because T Little has failed "to establish, that any state or federal laws or regulations were violated by information she reported", to show "any conduct that violated any Executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual, or was economically wasteful, involves gross misconduct, incompetency, or inefficiency", and because those reports "merely disclosed possible violations of internal policies, which in one instance did not exist, and which are not protected even if the policies are of a government entity." (Notice at p. 4, ¶¶ 1, 2.)

The issues also include that T Little's reports did not involve a "protected disclosure" or "good faith communication" because they "did not involve disclosures of an 'improper governmental activity' and the disclosures were not intended for the purposes of remedying any condition that threatened the health or safety of employees or the public as the activities [T Little] reported did not threaten such things"; that T Little "could not have a reasonable belief that illegal conduct was occurring, as [T Little] did not witness most of the alleged conduct reported and objectively could not reasonably believe those facts constituted illegal conduct"; that T Little "did not have reasonable cause to believe the reported activities disclosed 'improper government activity' or violated any law"; and that T Little "reported publicly known or already known information which does not constitute a protected disclosure" (Notice at pp. 4-5, ¶¶ 3, 4, & p. 6, ¶¶ 11, 14.)

For the same reasons described above, the Regents T Little Motion argues that the first cause of action for violation of Government Code section 8547 et seq. (the California Whistleblower Protection Act or Act) and the second cause of action for violation of Labor Code section 1102.5 asserted by T Little in the Little Complaint lack merit.

The same reasoning and analysis apply here. For example, the Regents T Little Motion concedes that the alleged protected disclosures at issue include that in June 2017, T Little informed Millard about a purported misappropriation of department funds by Smith; Smith's improper use of emergency vehicles during mutual aid events; a possible hit and run by Smith that was reported to T Little by a subordinate; Smith driving recklessly while in pursuit and hitting a parked vehicle in violation of Vehicle Code sections 20002, 21055, and 23104; that Smith engaged in timecard fraud in violation of Penal Code section 424; and that on September 17, 2018, T Little expressed concerns that Smith was engaged in a sexual relationship with a subordinate, causing a hostile work environment and sexual harassment claims. (Sep. Stmt., UMF nos. 31, 40, 42, 109; Memorandum at p. 12.) T Little also claims that UCSB-PD did not investigate the concerns that she expressed to Millard in June 2018. (Sep. Stmt., UMF no. 44; Memorandum at p. 12.)

For the same reasons discussed above, a reasonable trier of fact could conclude that the disclosures at issue in the Regents T Little Motion relate to or implicate a misuse or waste of state expenditures, violations of law, or a threat to the safety of other employees. The Regents T Little Motion also does not explain why a reasonable trier of fact could not conclude, from the information and evidence presented here, that those disclosures were made by T Little for the purpose of remedying the purported concerns raised by T Little. Moreover, the present record is sufficient to support a finding by the trier of fact, that the disclosures at issue implicate or concern improper activity under the Act, that T Little reasonably believed the conduct at issue constitutes improper government activity notwithstanding any lack of personal knowledge by T Little of any particular activity, and that the communications of T Little regarding those concerns were made in good faith.

The issues that are the subject of the Regents T Little Motion also include that T Little cannot establish an adverse employment action; that the issuing by UCSB-PD of "a notice to all sworn officers about the annual renewal of specialty assignments such as corporal or detective was not an adverse employment action simply because [T Little] was not selected among the multiple candidates for these positions by the review committee consisting of fellow officers"; that T Little cannot establish that the alleged protected activities at issue were "a contributing factor to any alleged adverse employment action

suffered by [T Little]" or that there was a "causal link" because the purported adverse employment action was "remote in time or not in proximity", and was made by a committee who did not have knowledge of that protected activity; and that the adverse employment action alleged by T Little would have occurred for legitimate independent reasons. (Notice at pp. 5-6, ¶¶ 5-10 & 12-13.)

The public redacted version of the T Little Amended Appendix includes an exhibit which is described by the Regents as the "Kramer Workplace Investigation Report, Dated October 26, 2020" (the Kramer Report). (T Little Amended Appendix, Vol. 1 at p. 6, ll. 14-15.) As the Kramer Report was, pursuant to the May 29 Order, placed under seal, the court's discussion of that report "must be circumspect." (In re Providian Credit Card Cases (2002) 96 Cal.App.4th 292, 303.)

Information contained in the Kramer Report is sufficient to support competing inferences as to whether T Little was subjected to an adverse employment action, including as to a change in T Little's status, and whether the conduct of the Regents is sufficient to give rise to an inference of a retaliatory motive. (T Little Amended Appendix, exhibit 35 at pp. 41-42; Scheer, supra, 76 Cal.App.5th at pp. 917-918 [retaliatory motive may be shown by circumstantial evidence].) For these and all further reasons discussed above, the present record gives rise to and is sufficient to support competing inferences reasonably deducible from the evidence presented by the Regents in regard to the issues that are the subject of the Regents T Little Motion.

As the present record shows, for all further reasons discussed above, the existence of triable issues of fact, and can support competing inferences reasonably deducible from the evidence presented here, the court will deny the Regents T Little Motion. (Code Civ. Proc., § 437c, subds. (c), (f)(1); Aguilar, supra, 25 Cal.4th at p. 845; Gov. Code, § 8547.10, subd. (e).)

The Regents' request for judicial notice:

The court will grant the request of the Regents for judicial notice of the complaint filed by T Little in the Little Action. (Regents RJN at p. 4, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

Evidentiary objections:

The Regents has submitted written objections to material contained in the declaration of T Little submitted in support of their opposition to the Regents T Little Motion. Those objections also fail to follow the format set forth in California Rules of Court, rule 3.1354. For example, in a similar manner to that further described above, the Regents raise the same multiple objections to the same multiple statements contained in each cited paragraph of the T Little declaration, forcing the court to guess whether the Regents contends that all or only some statements within each cited paragraph are objectionable, and why.

The same reasoning and analysis apply. As the written objections submitted by the Regents do not, for all reasons discussed above, comply with the formatting rules set forth in California Rules of Court, rule 3.1354, the court disregards those objections. (Hodjat, supra, 211 Cal.App.4th at p. 8.)

(b) The Regents M Little Motion

The Regents M Little Motion seeks an order granting summary judgment against M Little or, alternatively, summary adjudication of 12 issues which are identical or nearly identical to those further discussed above in regard to the Regents T Little Motion. (See Notice at pp. 4-6.) The supporting separate statement sets forth 145 facts that, for the same reasons discussed above, the Regents M Little Motion concedes are material to the causes of action asserted by M Little in the Little Complaint, and each issue that is the subject of the Regents M Little Motion. (Sep. Stmt. at pp. 4-24 [material fact nos. 1 through 114 as to "all causes of action"] & pp. pp. 24-30 [incorporating material fact nos. 1 through 114 as to each issue]; Cal. Rules of Court, rule 3.1350(a)(2).)

The same reasoning and analysis apply here.

For example, the M Little Amended Appendix that was filed unsealed by the Regents on June 3, contains redactions to material appearing in exhibits other than exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29, which are the only exhibits to the M Little Amended Appendix for which the court granted the Little Motion to Seal. (See May 29 Order.) For the same reasons discussed above, the Regents has failed to comply with the May 29 Order. Furthermore, and for those same reasons, the court does not consider any material that has been redacted from the M Little Amended Appendix apart from exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29.

The Regents M Little Motion also concedes or effectively concedes that the alleged protected disclosures at issue include that M Little informed Millard that Smith gave preferential treatment to an officer by dismissing a vehicle accident that caused damage to UCSB-PD property; that Smith used the Regent's vehicle and gas card to drive to Santa Cruz for non-job-related purposes and to purchase gas for that outing; that around June 6, 2017, Smith drove recklessly during a pursuit, hit a parked car, and did not stop in violation of Vehicle Code sections 20002, 21055 and 23104; that another officer "possibly witnessed" Smith committing a hit-and-run while on duty; that Smith was engaging in timecard fraud by using Community Police Patrolling allocations to work overtime while not performing any patrol duties; that on or around January 2017, Smith ordered an unsanctioned and unnecessary code three emergency response during which the involved vehicles dangerously maneuvered through traffic in an unsafe manner, and for which Smith was eventually disciplined; and that M Little filed an Ethics Point Incident complaint under the Regent's Whistleblower Protection Policy, and a whistleblower retaliation complaint with the Office of the President. (Memorandum at pp. 12-14; see also Sep. Stmt., UMF nos. 29, 35, 37, 38, 45, 47, 50, 59, 113 & 114.) Those purportedly protected disclosures occurred in May and June 2017, and September and October 2018. (Ibid.)

For the same reasons discussed above, the subject matter of the disclosures or reports by M Little are sufficient to support a finding by a reasonable trier of fact that the disclosures or reports of M Little relate to or implicate a misuse or waste of state expenditures, violations of law, or a threat to the safety of other individuals, and that those reports were made for the purpose of remedying the purported concerns described above.

The Regents M Little Motion effectively concedes that the following facts are also material to the disposition of that motion: on December 7, 2017, Sergeant Smorodinsky sent an email to range staff that M Little was not included as an instructor at upcoming training; Pierce did not take action on a training request submitted by M Little on December 20, 2017, until March 27, 2018; on February 13, 2018, M Little met with Romero who expressed that he was furious at M Little for reporting Smith; pursuant to assignments for active shooter training made or sent out by Pierce on June 13, 2018, and September and October 2018, M Little was the only range instructor not assigned to that training; on September 3, 2018, UCSB-PD announced that M Little had not been selected for the Computer Forensic Analyst position; on January 14, 2019, Millard gave M Little only two hours to make shift selection choices for the upcoming 2019 year which limited M Little's choices and did not provide all shift slots available to Patrol Corporals; Millard dismissed M Little's concerns about those limited choices; on January 25, 2019, Pierce emailed assignments for range training instructors that assigned M Little a single day of instruction for the five days scheduled; and that on March 10, 2020, UCSB-PD issued a notice of termination to M Little, which M Little appealed. (Sep. Stmt., UMF nos. 83-85, 91-94, 116-117, 122-124, 128-129, & 136.)

For the same reasons discussed above, the present record, when viewed in the light most favorable to M Little, shows the existence of triable issues of fact, and can support competing inferences reasonably deducible from the evidence presented here, in regard to whether the Regents acted with a retaliatory motive or intent, notwithstanding whether the Regents can show the existence of a legitimate reason for the purported adverse employment action. (See Scheer, *supra*, 76 Cal.App.5th at pp. 917–918.). Therefore, and for those reasons, the court will deny the Regents M Little Motion. (Code Civ. Proc., § 437c, subds. (c), (f)(1); Aguilar, *supra*, 25 Cal.4th at p. 845; Gov. Code, § 8547.10, subd. (e).)

The Regents' request for judicial notice:

The court will grant the request of the Regents for judicial notice of the complaint filed by M Little in the Little Action. (Regents RJN at p. 4, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

The Regents also request judicial notice of an “Arbitrators Decision” dated February 25, 2022, including joint exhibit 4 to that decision (collectively, the Arbitrators Decision), and an April 2, 2025, decision by the Court of Appeals in case no. B334021, entitled Michael Little et al. v. The Regents of the University of California et al. (the Appeal Decision). (RJN at p. 4, ¶¶ 2, 3.) In support of that request, the Regents’ counsel, Jaqueline Orozco (attorney Orozco), states that the Arbitrators Decision and the Appeal Decision are attached to the M Little Amended Appendix as, respectively, exhibits 20 and 41. (Orozco Dec. [RJN], ¶¶ 3, 4.)

The court will grant the Regents’ request for judicial notice of the Arbitrators Decision. (Evid. Code, § 452, subd. (d); Greenspan v. LADT, LLC (2010) 191 Cal.App.4th 486, 525.)

Apart from generally referencing or describing the Appeal Decision (see memorandum at pp. 11 & 18), the Regents M Little Motion does not include any factual or legal reasoned argument explaining why the Appeal Decision is relevant to the issues presented in, or the adjudication of, that motion. For these reasons, the court will deny the Regents’ request for judicial notice of the Appeal Decision. (See Evid. Code, § 350; Mangini v. R. J. Reynolds Tobacco Co. (1994) 7 Cal.4th 1057, 1063, overruled on other grounds in In re Tobacco Cases II (2007) 41 Cal.4th 1257, 1276 (Mangini).)

Evidentiary objections:

The written objections by the Regents to material contained in the declaration of M Little contain the same formatting deficiencies further discussed above, and fail to follow the format set forth in California Rules of Court, rule 3.1354. In addition, the court does not deem the matters to which the Regents has objected material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) For these and all further reasons discussed above, the court will disregard and decline to rule on those objections. (Hodjat, supra, 211 Cal.App.4th at p. 8.)

(3) Motion to Dismiss Signa Action

The information, evidence, and arguments presented in the Motion to Dismiss Signa Action are the same or effectively the same as those presented in the Motion to Dismiss Smith Action. The Motion to Dismiss Signa Action is also supported by a declaration of the Regents’ counsel, Enrique M. Vassallo (attorney Vassallo), and is made on the ground that, pursuant to Code of Civil Procedure section 583.310 and emergency rule 10(a), the deadline to commence trial of the Signa Action expired no later than January 17, 2026, such that the Signa Action, which the Regents and Olson concede is set for trial on June 18, 2026, is subject to mandatory dismissal under Code of Civil Procedure section 583.360.

“An action shall be dismissed by the court ... on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in [Code of Civil Procedure section 583.310 et seq.].” (Code Civ. Proc., § 583.360, subd. (a).) The requirements of Code of Civil Procedure section 583.310 et seq., “are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc., § 583.360, subd. (b).)

“An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) Noted above, the undisputed record, including information and evidence presented in the Motion to Dismiss Signa Action, reflects that Signa filed the Signa Complaint on November 21, 2018. (See Vassallo Dec., ¶ 3, exhibit 1.)

“In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

“(a) The jurisdiction of the court to try the action was suspended.

“(b) Prosecution or trial of the action was stayed or enjoined.

“(c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (Code Civ. Proc., § 583.340.)

The present record also reflects, without dispute, that on May 22, 2019, the court ordered a stay of the proceedings in the Signa Action. (Vassallo Dec., ¶ 6 & exhibit 4.) The Motion to Dismiss Signa Action does not dispute that the stay of the Signa Action was lifted on January 15, 2021. (Vassallo Dec., ¶ 8 & exhibit 6; see also Cal. Rules of Court, rule 8.104(c)(2), (3); *Jablon v. Henneberger* (1949) 33 Cal.2d 773, 775 [general discussion of when an order is effective]; *Hughey v. City of Hayward* (1994) 24 Cal.App.4th 206, 209 [same].)

For the reasons discussed above, the Motion to Dismiss Signa Action, and the court’s own calculations, show that the prosecution and trial of the Signa Action was stayed from May 22, 2019, until January 15, 2021, for a total of 604 days. (See also Vassallo Dec., ¶ 10.) The time during which the proceedings in the Signa Action were stayed is, for all reasons discussed above, excluded when computing the time within which the Signa Action must be brought to trial pursuant to Code of Civil Procedure section 583.310. (Code Civ. Proc., § 583.340, subd. (b).)

Relevant here based on the date of filing of the Signa Complaint, “the Judicial Council issued 11 emergency rules on April 6, 2020. [Citation.] This included emergency rule 10(a), which provides the following: ‘Notwithstanding any other law, including Code of Civil Procedure section 583.310, for all civil actions filed on or before April 6, 2020, the time in which to bring the action to trial is extended by six months for a total time of five years and six months.’ [Citation.] The rule remained in effect until June 30, 2022.” (*Barron v. Santa Clara County Valley Transportation Authority* (2023) 97 Cal.App.5th 1115, 1123.) Because the Signa Complaint “was filed prior to April 6, 2020, [that] complaint falls within the purview of emergency rule 10(a).” (Id. at p. 1124.)

Similar to the Motion to Dismiss Smith Action, the Motion to Dismiss Signa Action argues that, because the time during which the Signa Action was stayed overlaps with the extension provided by emergency rule 10, and Signa is not entitled to duplicative tolling, Signa may not “stack” the extension provided under emergency rule 10 onto the time during which the Signa Action was stayed. The Motion to Dismiss Signa Action advances no reasoned argument to support that assertion.

Further, emergency rule 10 “is located in appendix I of the California Rules of Court.” (*Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 827.) “The ordinary principles of statutory construction govern [the] interpretation of the California Rules of Court. [Citations.] [The] objective is to determine the drafter’s intent. If the rule’s language is clear and unambiguous, it governs.” (*Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894, 902.)

The court first considers “the words of a statute, as the most reliable indicator of legislative intent.” (*John v. Superior Court* (2016) 63 Cal.4th 91, 95–96.) Emergency rule 10, set forth above, provides a six month extension of time to bring to trial “all civil actions filed on or before April 6, 2020[.]” (Cal. Rules of Court, appen. I, emergency rule 10(a).) The clear and unambiguous language of that rule does not include any express exemption or exception for civil actions which are subject to a stay order. The plain language of that rule also does not indicate that the Judicial Council intended to exclude overlapping time periods, or the time within which an action is stayed. Presumably, had the Judicial Council intended to exclude civil actions which are subject to a stay or the time during which a civil action is stayed, they would have explicitly done so.

For all reasons discussed above, the general and conclusory assertions advanced in the Motion to Dismiss Signa Action do not show, or persuade the court, that the time within which the Signa Action was stayed must be excluded from the extended time in which Signa must bring that action to trial pursuant to emergency rule 10.

The effectively undisputed present record reflects that, pursuant to emergency rule 10(a), the time in which to bring the Signa Action to trial was extended to May 21, 2024. (See Vassallo Dec., ¶ 11.) Excluding the 604 days during which the Signa Action was stayed pursuant subdivision (b) of Code of Civil Procedure section 583.340, the court’s calculations show that the Signa Action was required to be brought to trial no later than January 15, 2026. The Motion to Dismiss Signa Action also asserts that there has been no stipulation by the parties to extend the period in which to bring the Signa Action to Trial, and that the Regents and Olson have not expressly waived their right to seek a dismissal under Code of Civil Procedure section 583.310. (Vassallo Dec., ¶¶ 14-15.)

In the opposition to the Motion to Dismiss Signa Action, Signa asserts that, at the TCC which, as further described above, proceeded on August 8, 2025, the parties agreed to a trial date beyond the statutory five-year deadline which had not run. Signa further asserts or effectively asserts that the parties' agreement to extend the deadline to bring the Signa Action to trial is recited or reflected in the minutes of the court including the TCC Order.

The opposition of Signa is supported by a declaration of Signa's counsel, Jaime Keeton, to which is attached a copy of the TCC Order, and the court reporter's transcript of the TCC. (Keeton Dec., ¶ 4 & exhibits A, K.) Attorney Keeton states that in 2026, with the exception of two motions, they personally appeared at hearings held in these matters, and that during those hearings where the court addressed the June 18, 2026, trial date, attorney Keeton confirmed and did not object to that date. (Keeton Dec., ¶ 7.) Attorney Keeton also asserts that on May 20, 2026, they applied ex parte for an order shortening time to hear a motion for an order consolidating the Signa Action, Little Action, Reyes Action, and Stern Action for trial which states that the trial of those matters was set to commence on June 18, 2026; and that the parties', including Signa's, litigation activities were directed to or intended to preserve that date for trial. (Keeton Dec., ¶¶ 8, 11-14 & 16.)

"The parties may extend the time within which an action must be brought to trial pursuant to this article by the following means:

"(a) By written stipulation. The stipulation need not be filed but, if it is not filed, the stipulation shall be brought to the attention of the court if relevant to a motion for dismissal.

"(b) By oral agreement made in open court, if entered in the minutes of the court or a transcript is made." (Code Civ. Proc., § 583.330, subds. (a), (b).)

Though "[Code of Civil Procedure] [s]ection 583.330 does not address what terms comprise an oral agreement extending the trial deadline[.]" courts "interpret the oral agreement prong of section 583.330 to be consistent with its written stipulation counterpart in authorizing parties to extend the statutory trial deadline by agreeing to postpone trial to a specific date beyond the statutory period." (Nunn v. JPMorgan Chase Bank, N.A. (2021) 64 Cal.App.5th 346, 354, 356 (Nunn).)

Though the Motion to Dismiss Signa Action asserts that the trial of the Signa Action was set by the court for June 18, 2026, that motion does not include any discussion of the TCC or the TCC Order, during or pursuant to which the court set the trial of the Signa Action.

The TCC Order notes that defendants' counsel informed the court at the TCC, that "they have contemplated consolidating the cases in which the Plaintiffs are represented by the Dre Law firm. The cases were consolidated for pretrial purposes only, however, no documents have been submitted to make it a true consolidation for trial. [¶] Counsel agreed that the [Smith Action], will be tried first and the cases that are being contemplated, as indicated by Defendant's counsel, will follow." (Keeton Dec., exhibit A, punctuation and capitalization unchanged.) The TCC Order also includes the parties' time estimates for trial, and reflects a "7 Day Jury Trial" in the Smith Action; and a "15 Day Jury Trial" in the Signa Action "and those considered in consolidation[.]" (Ibid.) Pursuant to the TCC Order, the Smith Action was set for a 7 day trial to commence on June 8 and conclude on June 17, 2026, and the Signa Action was set for trial to begin on June 18 and conclude on July 15, 2026. (Ibid.)

Though the TCC Order shows that attorney Peter Horton (attorney Horton), attorney Orozco, and attorney Daphne M. Anneet (attorney Anneet) were present at the TCC, the available information and evidence shows or suggests that attorney Keeton was not present at that conference. Notwithstanding whether attorney Keeton was present at the TCC, it can be inferred from the available information and evidence that Signa and their counsel, by their conduct in these proceedings as further described above, implicitly agreed to the trial date reflected in the TCC Order. (See, e.g., Civ. Code, § 1621 ["An implied contract is one, the existence and terms of which are manifested by conduct."]; Medina v. Van Camp Sea Food Co. (1946) 75 Cal.App.2d 551, 553–554 [general discussion].)

The TCC Order also shows that a court reporter was present at the TCC. The court reporter's transcript of that proceeding also reflects that counsel for the Regents, the Individual Defendants, and Smith (respectively, attorneys Orozco, Anneet, and Horton) appeared at the TCC. (Keeton Dec., exhibit K at p. 2 & p. 3, ll. 11-20.)

At the TCC, the court asked the parties' counsel: "So where are we with this case?" (Keeton Dec., exhibit K at p. 3, ll. 21-22.) The court also requested that counsel provide "the time estimate for this matter[.]" (Id. at p. 3, ll. 26-27.) In response, attorney Orozco stated: "the Regents currently are preparing to file a motion for summary judgement with a [sic] projected hearing dates in November and December. Based on the availability of your Court's calendar, we estimate these matters may be set for trial in April -- March or April of 2026." (Id. at p. 3, l. 28-p. 4, l. 5, punctuation and capitalization unchanged.)

Though the Motion to Dismiss Signa Action contends that the Signa Action was required to be brought to trial no later than January 17, 2026, the record of the TCC proceedings shows that, at the TCC, the Regents proposed a trial date in March or April 2026, after that purported deadline.

The transcript of the TCC also shows that attorney Orozco confirmed that the matters were, at that time, consolidated for pretrial purposes but not for trial, and stated: "we have contemplated the possibility of consolidating the trial for which plaintiffs are represented by the DRE Law Firm. And if that were the case, given the number of plaintiffs that are involved and represented by that specific firm, we would estimate 10 to 15 days for that if that were to be consolidated. I know that with regard to the case filed by Ryan Smith he has expressed -- and Mr. Horton, I don't mean to put words in your mouth here, but I know that you have expressed that you do not want to consolidate for trial purposes. So I estimate an additional five dates for that." (Keeton Dec., exhibit K at p. 4, ll. 6-24, punctuation and capitalization unchanged.)

Following the exchange described above, the court asked to hear from other counsel for the parties. (Keeton Dec., exhibit K at p. 4, l. 25.) Attorney Horton stated that the trial of the Smith action "will take five days at the most." (Id. at p. 5, ll. 4-5.) Attorney Anneet stated: "We estimate 15 days for the matters that are -- where the plaintiffs are represented by the DRE Law Firm, and then a separate five days for the matter of Ryan Smith." (Id. at p. 5, ll. 10-13.)

Based on the exchange described above, and the information and trial estimates provided to the court by the parties' counsel at the TCC, the court proposed trial dates between May 12 and June 4, 2026. (Keeton Dec., exhibit K at p. 5, ll. 16-22.) In response, attorney Orozco asked the court: "Would it be possible to begin after June 5th?" (Id. at p. 5, ll. 24-25.)

To accommodate attorney Orozco's requests as further described above, the court stated: "We could start on Monday June 8th through July 2nd if we needed it. Does that work for everyone?" (Keeton Dec., exhibit K at p. 5, l. 27-p. 6, l. 1.) In response, counsel confirmed that those days worked for the parties including the Regents and the Individual Defendants. (Id. at p. 6, ll. 2-3 [showing that attorney Anneet stated "Yes, that does, your Honor."].) Attorney Anneet also asked the court: "would this mean two concurrent trials, one for the first set of plaintiffs and then for ... that of [Smith]?" to which the court responded "Correct." (Id. at p. 6, ll. 3-7, punctuation and capitalization unchanged.) Counsel thereafter agreed that the Smith Action would proceed first on June 8, 2026. (Id. at p. 6, ll. 8-17.)

The Motion to Dismiss Signa Action does not present any information, evidence, or argument to dispute the content or veracity of the TCC Order, the minutes of the court reflected in that order, or the transcript made of the TCC proceedings. Pursuant to the information provided by counsel at the TCC, the exchange described above, and counsel's respective requests, the court set the Signa Action for trial to commence on June 18, 2026, with a 15 day time estimate for trial of that action and the trial of the Little Action, the Stern Action, and the Reyes Action.

For all reasons discussed above, the available information and evidence shows that the specific dates proposed by the court arose from or were based on the information and estimates provided by counsel, and counsel's discussions at the TCC, and to accommodate the interests of the parties including the Regents whose counsel requested trial dates in March or April 2026, and after June 5, 2026. (See Nunn, *supra*, 64 Cal.App.5th at p. 356 [discussing the court's accommodation of the parties].)

Furthermore, the record of the TCC does not, as the Motion to Dismiss Signa Action appears to suggest, indicate or show that the court unilaterally assigned a trial date without the input, agreement, or acceptance of those parties whose counsel appeared at the TCC. Instead, the transcript of that proceeding shows that counsel requested, and expressly and affirmatively agreed to, dates after the purported deadline asserted in the Motion to Dismiss Signa Action. Based on the express agreement to and affirmative acceptance of those dates by counsel, and counsel's discussion in regard to the consolidation of the cases, it was the court's understanding that the parties agreed that an estimated seven day jury trial of the Smith Action would proceed first on June 8, 2026, and would be followed by a jury trial of the Signa Action, the Little Action, the Stern Action, and the Reyes Action, with the Signa Action proceeding first on June 18, 2026, notwithstanding whether any of those dates fell beyond the statutory deadline to bring the Signa Action to trial.

The court also does not find the points advanced in the reply of the Regents and Olson, including for the first time in regard to the TCC proceedings, persuasive. For example, the Regents and Olson fail to explain, with appropriate supporting authority, why their counsel did not have the authority to propose or agree to trial dates, or why the presence of the Regents and Olson at the TCC was required. (See *Blanton v. Womancare, Inc.* (1985) 38 Cal.3d 396, 403–404 [general discussion of retained attorney's authority in procedural matters]; *Camille Corp. v. Superior Court* (1969) 270 Cal.App.2d 625, 628–629 [written stipulation signed by parties' attorneys was sufficient to extend statutory period to bring case to trial].)

Furthermore, though the court in *Nunn* noted the presence of the plaintiffs in that case at the trial-setting hearing at issue, the court also noted that counsel for the defendants, and not defendants, appeared at that hearing. (*Nunn*, supra, 64 Cal.App.5th at p. 356 [noting that "defendants' counsel ... appeared by telephone"].)

Olson has separately filed with the court, a joinder to the reply of the Regents and a supplemental reply. Considering that Olson is a moving party, and to the extent that supplemental reply is effectively a sur-reply, there exists some question as to whether the supplemental reply of Olson violates due process. (See, e.g., *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 449 [discussing sur-reply].) Notwithstanding whether the separately filed supplemental reply by Olson is authorized or procedurally appropriate, the court will exercise its discretion to consider that supplemental reply.

In support of Olson's supplemental reply, attorney Anneet states that at a May 15, 2026, hearing, they informed the court that the Individual Defendants had not agreed to extend the statutory deadline. It appears to the court that attorney Anneet's statement at that hearing was raised in response to the May 15, 2026, minute order, in which the court addressed procedural matters including an apparent confusion as to which cases will proceed to trial and when, and in which the court noted that, pursuant to the TCC Order and "[b]ased on the parties' agreement, the court set the Smith Action for jury trial to commence on June 8, 2026, and the Signa Action for a 15 day jury trial to commence on June 18, 2026."

There also exists some conflict between the assertions contained in the declaration of attorney Anneet submitted in support of Olson's supplemental reply and the exchange described in the transcript of the TCC and reflected in the TCC Order. For these additional reasons, the reliance by Olson on their counsel's declaration and not the TCC Order or transcript itself, does not persuade the court that the parties did not effectuate, by oral agreement at the TCC, an extension of the deadline to bring the Signa Action to trial. (*Nunn*, supra, 64 Cal.App.5th at p. 368, fn. 6; *Randolph v. Trustees of California State University* (2025) 117 Cal.App.5th 1228, 1233, fn. 3 (*Randolph*).)

For all reasons discussed above, the court finds that the Regents and Olson "affirmatively accepted" and "expressed their agreement" that the trial of the Signa Action would commence on June 18, 2026, "when counsel for both sides 'indicated' on the record" that trial dates in March or April 2026, or between June 8 through July 2, 2026, worked for all parties. (*Nunn*, supra, 64 Cal.App.5th at pp. 356-357.) "Taken together, these expressions of mutual assent constitute an agreement" to extend any deadline, including the deadline asserted in the motion, to bring the Signa Action to trial. (*Id.* at p. 357.) Therefore, and for these reasons, the court finds that the "interchange" that occurred at the TCC and described above "constitutes an oral agreement within the meaning of section 583.330." (*Id.* at p. 356; cf. *Randolph*, supra, 117 Cal.App.5th at p. 1233 [noting the lack of any discussion regarding a trial date in the transcript at issue; that the minute order at issue "merely show[ed] that counsel for the parties were present at the case management conference and the trial court set the ... jury trial dates[]"; and that "[n]othing in the minute order indicates that there was an agreement to the trial date beyond the statutory deadline...."].)

For all reasons discussed above, the court finds that the parties orally agreed at the TCC to postpone the trial of the Signa Action to a date beyond the specific statutory period set forth in Code of Civil Procedure section 583.310, as extended by emergency rule 10, and that the parties' oral agreement was made in open court and entered in the minutes of the court as shown or reflected in the transcript of the TCC proceedings and the TCC Order. Therefore, and for these reasons, the court will deny the Motion to Dismiss Signa Action.

Signa's request for judicial notice:

The court will grant Signa's request for judicial notice of the reporter's transcript of the TCC, the TCC Order, and the trial call order entered on October 2, 2025. (Signa RJN, ¶¶ 1-3; Keeton Dec., exhibits A, B & K; Evid. Code, § 452, subd. (d)(1).)

Signa also requests that the court take judicial notice of: (exhibit C to Keeton Dec.) the Clerk of the Court's certificate of mailing of the October 2, 2025, trial call order in the Signa Action; (exhibit E to Keeton Dec.) a stipulation and proposed order to continue hearing dates filed on April 10, 2026; (exhibit F to Keeton Dec.) a stipulation to permit discovery after the cut-off deadline filed on May 8, 2026; (exhibits G-I & D to Keeton Dec.) minute orders entered on May 1, May 8, May 15, and May 29, 2026; and (exhibit J to Keeton Dec.) the opposition of the Regents to the motion to consolidate described above, and filed on May 27, 2026. (Signa RJN, ¶¶ 4-11.)

The court records contained in exhibits C through J of attorney Keeton's declaration are not necessary or relevant to the court's determination of the Motion to Dismiss Signa Action. (Mangini, *supra*, 7 Cal.4th at p. 1063.) For these reasons, the court will deny Signa's request for judicial notice of those exhibits.

(4) Motion to Dismiss Little Action, Motion to Dismiss Reyes Action, and Motion to Dismiss Stern Action

The Motion to Dismiss Little Action, Motion to Dismiss Reyes Action, and Motion to Dismiss Stern Action are each supported by separately filed and substantively similar declarations of attorney Vassallo, and are made on the same grounds further discussed above, which, for convenience of writing and judicial efficiency, will not be repeated at length here. In addition, and for convenience of writing, the court will refer to the declarations of attorney Vassallo collectively, where appropriate.

The Motion to Dismiss Little Action, Motion to Dismiss Reyes Action, and Motion to Dismiss Stern Action each conceded that trial of the Little Action, the Reyes Action, and the Stern Action is set for June 18, 2026, which the moving parties assert is beyond the statutory deadlines to bring those actions to trial.

As to the Motion to Dismiss Little Action, which does not dispute that the Little Action was filed on March 19, 2019, the present record reflects that, pursuant to Code of Civil Procedure section 583.310 and emergency rule 10, the Little Action was, exclusive of any additional extensions of time and for the same reasons discussed above, required to be brought to trial no later than September 19, 2024. (See Vassallo Dec., ¶ 10.)

The Motion to Dismiss Little Action and the procedural history described above also show that the Little Action was stayed from May 22, 2019, until the court lifted that stay on January 15, 2021. (Vassallo Dec., ¶¶ 4-5, 7, exhibits 2-3 [joint motion and order to stay Little Action] & exhibit 5 [Jan. 15, 2021, minute order].) For the same reasons discussed above, the undisputed record reflects that the Little Action was also stayed for 604 days, which are, as further discussed above, excluded when computing the time within which that action must be brought to trial.

Though the present record, including the court's calculations, show that the Little Action was required to be brought to trial no later than May 18, 2026, (see Code Civ. Proc., § 10, § 12, & § 12a ["[i]f the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday."]), the same reasoning and analysis apply. For the same reasons discussed above including as to the evidence, information, and arguments presented by the Individual Defendants who are represented by attorney Anneet, the court will deny the Motion to Dismiss Little Action.

As to the Motion to Dismiss Reyes Action, that motion and the relevant procedural history also shows, without dispute, that, exclusive of any additional extensions of time, the Reyes Action filed on May 17, 2019, was required to be brought to trial no later than November 17, 2024, which is a Sunday. (Code Civ. Proc., § 583.310; Cal. Rules of Court, appen. I, emergency rule 10(a); see also Vassallo Dec., ¶ 10; Code Civ. Proc., § 10, § 12, & § 12a.)

For the same or similar reasons discussed above, the Motion to Dismiss Reyes Action and the procedural history of these matters show that the Reyes Action was stayed from July 23, 2019, until January 25, 2021, for a total of 552 days. (Vassallo Dec., ¶¶ 5, 7, 8, exhibit 3 [July 23, 2019, order] & exhibit 5 [Jan. 25, 2021, minute order].) Excluding those days from the time within which the Reyes Action is required to be brought to trial, the court's calculations show that the Reyes Action was required to be brought to trial no later than April 24, 2026. (Code Civ. Proc., § 12a.)

As the Motion to Dismiss Reyes Action also does not dispute or effectively dispute that the Reyes Action was set for trial on June 18, 2026, pursuant to the TCC Order (memorandum at p. 9, l. 18), the same reasoning and analysis apply including as to the information, evidence, and arguments presented or advanced by Millard and Smorodinsky. For the same reasons discussed above, the court will deny the Motion to Dismiss Reyes Action.

The Motion to Dismiss Stern Action also does not dispute that the trial of the Stern Action is, pursuant to the TCC Order, "currently scheduled for June 18, 2026...." (Memorandum at p. 9, l. 18.) Even if the Regents or Millard, who is also represented by attorney Anneet, could present evidence and information showing why that date is beyond the statutory deadline, the same reasoning and analysis apply. For all reasons discussed above, the court will also deny the Motion to Dismiss Stern Action.

The Little Plaintiffs, Reyes, and Stern's requests for judicial notice:

For the same reasons discussed above, the court will grant the respective requests of the Little Plaintiffs, Reyes, and Stern, for judicial notice of the transcript of the TCC proceeding, the TCC Order, and the trial call order entered on October 2, 2025; and will deny the requests for judicial notice of the court records contained in exhibits C through J of the declarations of attorney Keeton separately filed in support of the oppositions of the Little Plaintiffs, Reyes, and Stern.

Judges

Judge Donna D. Geck

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